GDPR (GENERAL DATA PROTECTION REGULATION)

PROTECTING YOUR DATA

WHY | WHAT | HOW | WHO | YOUR RIGHTS

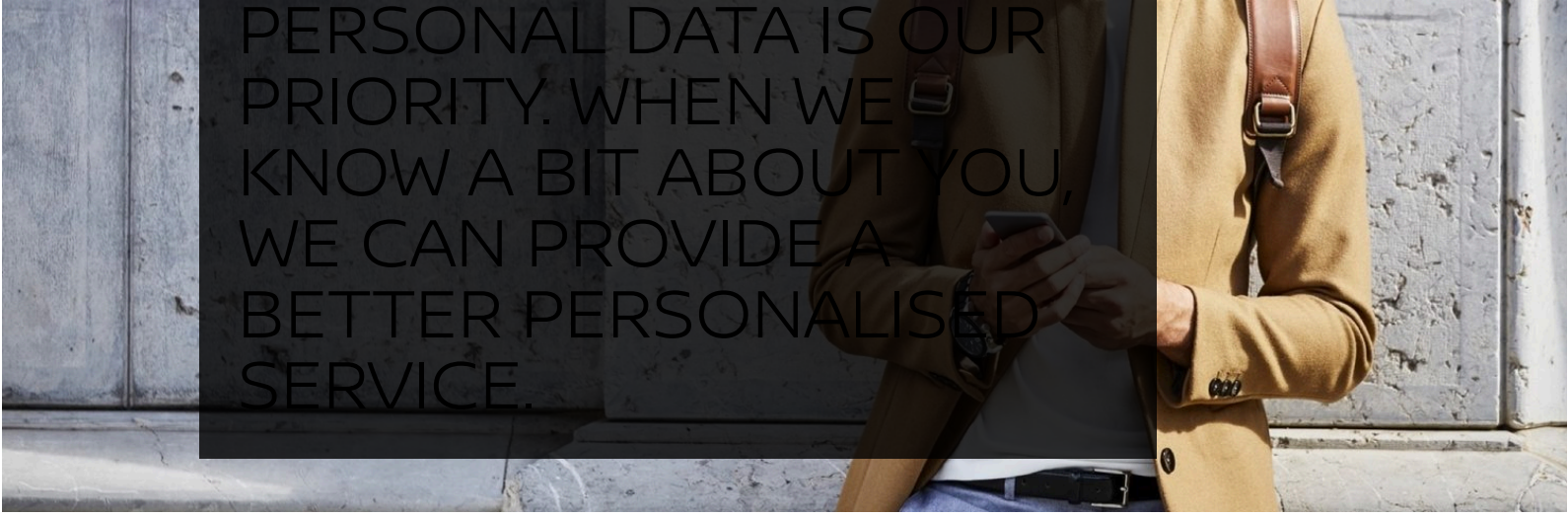
At Nissan we are committed to protecting your privacy – this means that we will make sure that any information you give to us by purchasing our goods and services, visiting our websites, social media pages (such as Instagram or Facebook) is only used for the purposes set out in this "**Privacy Policy**".

This Privacy Policy tells you what we do with your personal data, and how we comply with data privacy laws that tell us to treat your personal data in a certain way. This Privacy Policy also applies to everyone who visits our website and social media pages.

For the purpose of this Privacy Policy, we need to tell you that the relevant legal entity responsible for any personal data you provide to us (known as a "data controller") is called Nissan Motor (GB) Limited ("NMGB"). Please note that your personal data may also be processed by Nissan Automotive S.A.S, acting as well as data controller. Both Nissan entities are referred to in this Privacy Policy as "**Nissan**", "**us**" or "**we**".

The controller for the connected services and on boarding driving assistance is Nissan Automotive Europe S.A.S.

PROTECTING YOUR



1. WHY DO WE COLLECT YOUR DATA?

PROTECTING YOUR PERSONAL DATA IS OUR PRIORITY. WHEN WE KNOW A BIT ABOUT YOU, WE CAN PROVIDE A BETTER PERSONALISED SERVICE.

Using your personal data helps us improve our service to you. We can process your requests faster and manage our relationship better. Here is how we use your personal data:

Objectives	Legal basis
Creating and managing your account. **(as part of customer and prospect relationship management and provision of online services on the Nissan website)**	This processing is based on the performance of the contract you have entered into with us.
Passing your request to the relevant dealer.	This processing is based on our legitimate interest (to provide a quality service).
Providing information you might have requested (whether from us or our authorised dealership network).	This processing is based on the pre-contractual relationship resulting from your request (for example, to respond to your enquiry or fulfil any requests you make regarding test drives, service requests, brochure requests or information about specific vehicles) or our legitimate interest (to provide a quality service).

Objectives	Legal basis
Sending you relevant information about your vehicle(s) and our services.	This processing is based either on our legal obligations (for example, sending you information about recalls on your vehicle), performance of a contract (for example, sending you information about your existing warranty agreement with us) or legitimate interest to provide quality service and ensure quality of our products(for example, sending you information about system updates, service or MOT reminders or aftersales services such as information about your existing warranty or warranty extension).
Managing vehicle orders (as part of customer relationship management)	This processing is based on the performance of the contract you have entered into with us or one of our authorised dealers or our legitimate interest to provide quality service and ensure quality of products.
Managing after-sales service (as part of customer relationship management)	This processing is based on the performance of the contract you have entered into with us or one of our authorised dealers or repairers or our legitimate interest (to ensure that the services we are providing meet our quality standards)
Measuring the performance of our advertisements (including the effectiveness of marketing campaigns).	This processing is conducted based on our legitimate interest (to measure the performance of our activities), where possible using pseudonymised data.
Measuring the performance of our sales and after sales services.	This processing is based on our legitimate interest (to ensure that the services we are providing meet our quality and standards).
Sending you direct marketing communications (including newsletters) about our vehicles, products, and services.	The processing is based on your consent (for example, where such marketing communication is sent by electronic means) or soft opt-in (legitimate interest) where the product/ service has been purchased directly with Nissan, to send relevant commercial communications to current customers on services or products similar to those preciously purchased (by email, SMS, instant messages e.g. WhatsApp, text messages, telephone etc.). Where postal direct marketing is sent, this processing is based on consent or our legitimate interest to advertise our products and services (for example, where you have already purchased a vehicle or service from us, made a purchasing enquiry or requested a test drive, brochure, or other request for information. We will only contact you with information about our own vehicles and services (and in ways the laws allow). You have the right to object to us sending you this information at any time.
Sending you online targeted advertisements about our	Where you have provided us with your consent to receive direct marketing communications (as described above) by email, we

Objectives	Legal basis
vehicles, products, and services, through our social media and advertising placement partners.	may share your email address with our social media and advertising placement partners (such as Facebook and Google etc.) to send you online targeted advertisements and offers on their platforms. This processing is based on our legitimate interest(to advertise our products and services and provide you with relevant content).
We will use profiling, including segmentation tools to improve our customer and market knowledge.	This processing is based on our legitimate interest (to get to know the behaviour of our customers and prospects better and/or to provide you with relevant content).
Carry out customer satisfaction surveys (unless you object to such processing).	This processing is based on our legitimate interest (to improve our products and services) or consent.
Creating lookalike audiences (as part of profiling & predictive marketing/advanced analytics and social media)	This processing is based on our legitimate interest (to identify prospects that are likely to be interested in our products and services)
Displaying targeted adverts through our social media and advertising placement partners based on profiling	This processing is based on our legitimate interest (to provide you with relevant ad content, when it is likely to be relevant to you)
Utilising customer feedback via surveys for the research and development of new products and services.	Where possible, this will be using anonymised or pseudonymised data. This processing is based on our legitimate interest (to improve our products and services).
Call recordings of your interactions with Nissan and Nissan dealers (unless you object to such processing).	This processing is based on our legitimate interest (and those of the Nissan dealer) for quality and training purposes.
Business to business sales and marketing support activities to corporate subscribers.	This processing is based on our legitimate interest (to advertise our products and services) or consent where the business is a sole trader or partnership.
Management of your complaints and data subjects request. (as part of litigation and claim management)	This processing is based on our legitimate interest (prevention of legal action) in the case of complaints and legal obligation for subject requests.

Your Preferences

You may change your preferences and stop receiving marketing communications from us

(including online targeted advertising) at any time by clicking here: https://www.nissan.co.uk/manage-your-preferences.html.

Where does the data we process for marketing come from?

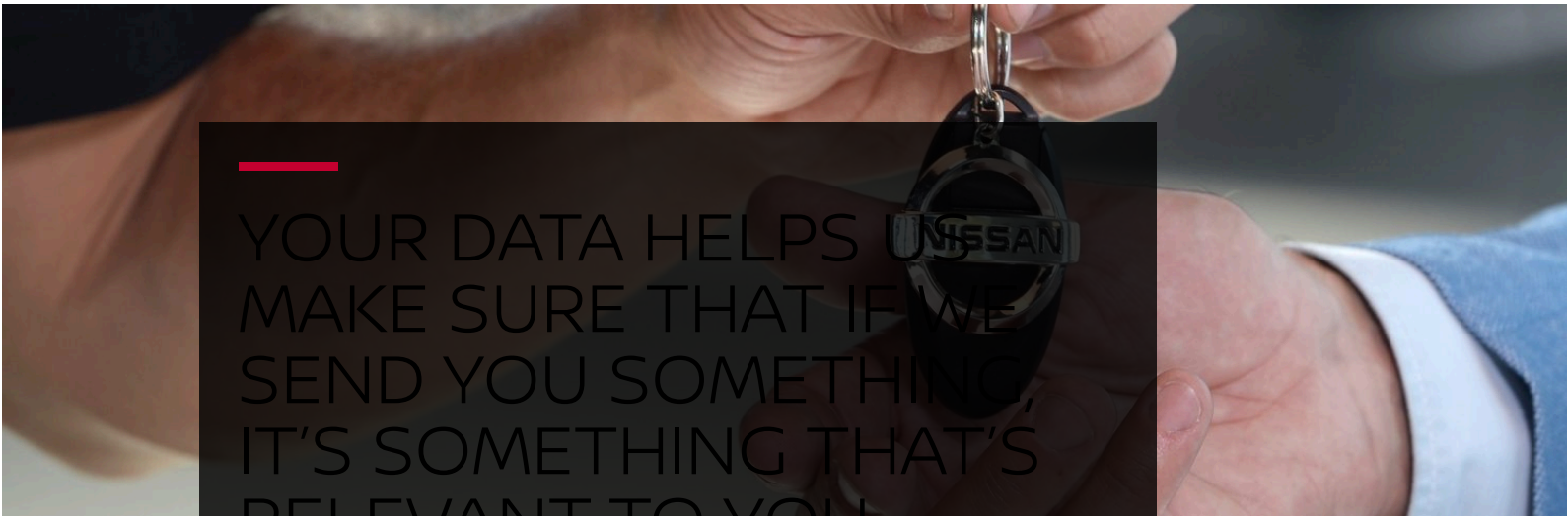
To manage our marketing operations, in particular,to personalise the advertising and content we show you, we analyse your data from multiple sources and use dedicated computerised tools.

Our analysis are based on data provided directly to us by our customers and prospects (for example, by signing up for a test drive on our website, or through data relating to browsing our website and the use of our mobile applications) and from our partners (for example, your Facebook website browsing data).

When you visit our Nissan Facebook Fanpage, Nissan and Facebook process your personal data (including but not limited to your username, any comments that you post, direct messages that you send to us and your activities (such as the time and date of your posts and "likes"), via the Facebook Insights services). Nissan and Facebook are regarded as "joint controllers" for this processing.

Facebook is solely responsible for any further processing of your data, with no input or influence from Nissan – please refer to Facebook's privacy policy here www.facebook.com/privacy, for a description of its processing activities and information on your rights.

The data provided by our partners is data collected using the placed cookies that you have authorised. This data that we use may include, depending on the tools, identification data (surname, first name, contact details), technical identifiers (your terminal`s IP address, technical identifiers assigned to your terminal by Nissan or by our partners), and browsing and connection data (pages viewed, website visited, clicks).



2. WHAT KIND OF DATA DO WE COLLECT?

YOUR DATA HELPS US MAKE SURE THAT IF WE SEND YOU SOMETHING, IT'S SOMETHING THAT'S RELEVANT TO YOU.

Any personal data we hold is collected via the purposes outlined in the table above. We may also rely on anonymised statistical data or work with third party companies to enrich our knowledge about you.

The personal data we collect depends on our interaction with you and may include (but are not limited to):

Type of data	Examples of data
Identification data	First name, surname, title, postal address, email address, phone number, voice utterance, etc.
Special category of personal data (in very limited circumstances only)	Medical personal data (which you may have provided to us during a complaint or an enquiry) – *Please note that such special category of personal data shall only be processed where strictly necessary for providing the user with a service that they requested and with their consent, or to comply with a legal or regulatory obligation. In any case, special categories of personal data will never be used for marketing purposes. We will take appropriate measures to ensure the adequate protection of such special category of personal data.*
Data relating to your online accounts	Identification data mentioned above and any data relating to your online account (e.g., date of creation, settings configured, etc.).
Payment and transaction data	Payment method, billing address, discount granted etc.
Purchase details and order history	Data relating to any service agreements for products and services between you and Nissan, any authorised dealer or repairer or our financing partner (such as agreement length and parity date), order number, data related to the products you order, order amount, time and date of your purchase / of your use of our services, discount granted, details of services provided by Nissan group companies and authorised dealers that you have received or for which you have registered, details of any transactions between you and Nissan or any authorised dealer or repairer; etc.
Details relating to your warranties / insurance policies	Data relating to your service plan, warranty, and extended warranty, information about the insurance policies relating to your vehicle (such as the type, level, and period of cover, which we receive from insurance companies or brokers), etc.
Data relating to your interactions with Nissan	Data relating to aftersales services and/or other relevant services, including our customer service, voice recordings from calls between you and Nissan and you and the Dealer, "live chat" records, etc.
Vehicle identification data	Vehicle model, registration, registration number, vehicle identification number (VIN), service reminders and warranty information, etc.
Use of the vehicle	Mileage, journey, use of multimedia, etc.

Data relating to marketing programs	Loyalty, direct marketing, market research or survey actions (such as your vehicle preferences). Where you act on behalf of a business, business telemarketing relating data.
Connection and browsing data	Date and time of connection, IP address, browser type, browser language, devices used, event logs and any data related to the use of our websites, GPS location (where you have permitted access to this), etc.
Cookies	This Privacy Policy does not cover the use of cookies. For more information on the use of cookies or to change your preferences regarding such cookies, please visit our Cookie Policy here: https://www.nissan.co.uk/legal/cookies.html

Please note that the products and services that we offer are primarily for adults. Therefore, we do not carry out any specific personal data processing on minors.

Any personal data we hold is collected for the purposes outlined in Section 1 of this Privacy Policy. We may also rely on anonymised statistical data or work with third party companies to enrich our knowledge about you. Certain personal data may be mandatory or optional, depending on your request or your use of our products / services. Mandatory data will be marked as such at the point of collection. If you refuse to provide mandatory data, we may not be able to provide the products / services you have requested

We encourage you to keep us updated, in writing, of any changes to your personal data by exercising your rights as detailed in Section 5 of this Privacy Policy.

Connected Services

Your personal data is processed by Nissan Automotive Europe S.A.S (who are the data controller in this instance) for the purposes of providing you with connected services and on-board driving assistance applications (e.g. Geolocation data (where you have permitted access to this), data allowing control of the vehicle (such as locking/unlocking doors, activating headlamps or horn, etc.), battery-related data (battery state of charge, charge programming), vehicle pre-heating or cooling) data relating to driving mode (such as use of controls, acceleration, braking) or to the provision of connected services or on-board applications, etc.).

Cookies

This Privacy Policy does not cover the use of cookies. For more information on the use of cookies or to change your preferences regarding such cookies, please visit our Cookie Policy here: https://www.nissan.co.uk/legal/cookies.html

3. HOW LONG DO WE KEEP YOUR DATA?

We are committed to holding your personal data only for the time necessary to achieve the objective pursued, to meet your needs, or to meet our legal obligations.

In determining this time (retention period), we take into account, in particular, the following:

- The length of your contract;
- The time required to process your request or complaint;
- Your interest in our brands;
- The need to keep a record of your interactions with us, to effectively manage our business relationship. This period will vary depending, in particular, on whether you have bought a vehicle or a service such as repair, or whether you have only interacted with us without entering into contracts with us; and
- Our legal or regulatory obligations (this is particularly the case for the technical data of our vehicles).

When we no longer need to use your personal data, it is deleted from our systems and records or made anonymous so that we can no longer identify you. However, it may be necessary to archive some of your personal data in order to be able to respond to any legal proceedings, throughout the statute of limitations provided for in the applicable legislation.

4. WHO DO WE SHARE DATA WITH?

We might share your personal data with our partners in order to improve our service. This would include financial service provider RCI Financial Services Limited trading as Mobilize Financial Services either under such companies` legitimate interest (dealing with customer complaints effectively) or to fulfil our contractual obligations. Your consent will be obtained where consent is required by the regulations. We make sure that they are as committed as we are to protecting your personal data and information.

5. WHAT ARE YOUR RIGHTS?

You have various rights in relation to the personal data which we hold about you. You can exercise these rights at any time by visiting this page.

- **Right to object**

This right enables you to object to us processing your personal data. If you object, we will stop using your data unless we can demonstrate compelling legitimate grounds (which overrides your interests) or if our use of your data is necessary for the establishment, exercise, or defence of legal claims. In addition, you have a discretionary right to object to direct marketing at any time (see section 6 below).

- **Right to withdraw consent**

Where we have obtained your permission to process your personal data for certain activities, you may withdraw this consent at any time. If you ask us to do this, we'll stop using your data unless we consider that there is an alternative legal reason to justify our continued processing of your data for this purpose, in which case we will tell you.

- **Right to access your data**

You may ask us for a copy of the information we hold about you at any time here https://www.nissan.co.uk/customer-service/contact-us/personal-data-request.html.

We will respond to your request within one month. That period may be extended by two further months where necessary, taking into account the complexity and number of requests. We may request proof of identification to verify your request. If you request further copies of this information from us, we may charge you a reasonable administrative cost. Where we are legally permitted to do so, we may refuse your request. If we refuse your request, we will always tell you the reasons for doing so.

- **Right to erasure**

You have the right to request that we "erase" your personal data in certain circumstances. We would only be entitled to refuse to comply with your request for erasure in limited circumstances and we will always tell you our reason for doing so.

- **Right to restrict processing**

You have the right to request that we restrict our processing of your personal data in certain circumstances, for example if you dispute the accuracy of the personal data that we hold about you or you object to our processing of your personal data for our legitimate interests. If we have shared your personal data with third parties, we will notify them about the restricted processing unless this is impossible or involves disproportionate effort. We will, of course, notify you before lifting any restriction on processing your personal data.

- **Right to rectification**

You have the right to request that we rectify any inaccurate or incomplete personal data that we hold about you. If we have shared this personal data with third parties, we will notify them about the rectification unless this is impossible or involves disproportionate effort. You may also request details of the third parties that we have disclosed the inaccurate or incomplete personal data to. Where we think that it is reasonable for us not to comply with your request, we will explain our reasons for this decision.

- **Right to portability**

You have the right to request to receive your data in a structured, commonly used, and machine-readable format.

- **Right to complain**

You also have the right to lodge a complaint with a supervisory authority – for us this is the Information Commissioner's Office ("ICO") in the UK. For further details, please visit www.ico.org.uk. We encourage you to contact us first, so that we may attempt to resolve your problem together.

6. CHANGE YOUR MARKETING PREFERENCES

You may change your marketing preferences and stop receiving marketing communications from us (including online targeted advertising) at any time by:

- Using the unsubscribe link in the communications sent to you;
- via your Contact Preference Centre, or;
- by contacting our Contact Center https://www.nissan.co.uk/customer-service/contact-us.html).

Nissan's marketing preferences and our authorised dealers and repairers marketing preferences are held and stored separately so if you change you marketing preferences for Nissan and wish to do so for the dealer you will need to contact the respective dealer separately to arrange this, please review the dealer/ repairers privcay policy for more details.

7. HOW TO CONTACT US?

If you have any queries about this Privacy Policy, including your rights in relation to your personal data, please contact our customer services team by email at: gb@nissan-services.eu.

Alternatively, you can contact our Data Protection Officer by email at: dpo@nissan-europe.com.

MODIFICATION OF THIS POLICY

We may amend this policy from time to time. We will inform you and/or seek your consent whenever necessary or required. We therefore recommend that you consult this policy each time you visit our website in order to review the latest version.

Version 04 updated on [August 2024]